

Tentative Rulings for August 21, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2305084	PIATT VS GET AIR PALM DESERT, LP	MOTION TO BIFURCATE ON 1ST AMENDED COMPLAINT OF TORREY PIATT

Tentative Ruling: Hearing continued to September 24, 2026 at 8:30 a.m. in Department PS2.

No further briefing will be permitted.

Court will decide issue of bifurcation at the time of trial once motions in limine and trial briefs have been reviewed.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400992	KANAVALOFF VS FGS CARGO, INC.	MOTION TO REOPEN CASE

Tentative Ruling: No tentative ruling. Hearing will be conducted on Friday August 21, 2026 at 8:30 a.m. in Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S NOTICE OF ANTI-SLAPP MOTION TO STRIKE AND ANTI-SLAPP SPECIAL MOTION TO STRIKE CROSS COMPLAINT

Tentative Ruling: Granted.

Attorney fees granted in the amount of \$17,693.60 payable to Defendant/Cross Defendant Polo Club Maintenance Association by Plaintiff/Cross Defendants Zenda Estate, LLC et al. within 30 days of this order becoming final.

This motion was initially heard on 7/16/26. This Court granted the anti-SLAPP motion and continued the hearing as to the attorney's fees portion to 8/21/26. The Court ordered a supplemental declaration attesting to fees actually incurred by movant to be filed on or before 8/3/26, and Opposition within 9 days of the continued hearing date to be prepared by cross-complainants. Movant filed a supplemental declaration and memo of Ps & As on 8/3/26. An opposition was filed on 8/10/26.

Supplemental Declaration of attorney Carol A. Baidas ("Baidas Decl.")

Ms. Baidas declares that her records indicate she has expended 19.7 hours of time in researching, drafting, revising and editing the present motion and supporting papers, opposition, reply, and this request for attorney fees for a total of \$4,728 . Attorney Jackie Aboud has spent 85.3 hours researching, drafting, revising and editing the present motion and supporting papers, opposition, reply, and this request for attorney fees for a total of

\$16,207 . In sum, the request for attorney's fees regarding this motion total \$20,935.00 (Supp. Baidas Decl., ¶11.)

Ms. Baidas explains that in this particular matter, her firm's payment for representation is being handled by Farmers Insurance. Based on her knowledge and experience, she believes that the hourly rate for civil litigation paid by insurance companies is far less than what is paid by private firms, which is why she submits that the Court should apply a reasonable multiplier to the fees requested in the present motion. (Baidas Decl., ¶4.)

By way of background, the initial declaration of Carol A. Baidas, Esq., filed concurrently with PCMA's Special Motion to Strike (Anti-SLAPP) on April 1, 2026, requested attorneys' fees and costs totaling \$11,872. (See Exhibit "A" Decl. Baidas, ¶ 12.) This calculation was based on the following factors. First, the total consisted of the hourly rate of Carol A. Baidas, Esq., which was set at \$240 per hour as a partner at Lewis Brisbois Bisgaard & Smith LLP, attorneys of record for PCMA, thus for 12.3 hours of time in researching, drafting, revising and editing the motion and supporting papers, the work of Carol A. Baidas amounted to a total of \$2,952. (Exhibit A, ¶ 7-8.) Second, the total also included the hourly rate of Jackie Aboud, Esq., which was set at \$190 per hour as an associate of the above-referenced firm for PCMA, thus for 32 hours of work consisting of researching, drafting, revising and editing the motion and supporting papers, the work of Jackie Aboud amounted to a total of \$6,080. (Exhibit A, ¶ 7-8.) Third, the total amount of attorneys' fees and costs consisted of the anticipated work necessary to further defend the motion. Carol A. Baidas anticipated she would expend .5 hours reviewing Cross-Complainants' Opposition to the motion, 3 hours drafting the Reply, and 2 hours attending the hearing on the motion, for a total of 5.5 hours amounting to \$1320. (Exhibit A, ¶ 9 and ¶ 11.) Jackie Aboud anticipated she would expend 1 hour reviewing Cross-Complainants' Opposition to the motion, and 7 hours drafting the Reply, for a total of 8 hours amounting to \$1,520. (Exhibit A, ¶ 10.)

Upon request from this Court, Carol A. Baidas has filed a Supplemental Declaration attesting to fees actually incurred to review Cross-Complainants' Opposition to the motion and to prepare a Reply, filed concurrently with this Memorandum. The Supp. Baidas Decl. has replaced the calculation of anticipated fees and costs incurred to review Cross-Complainants' Opposition to the motion and to prepare a Reply with the fees actually incurred as of August 3, 2026. Overall, the Supplemental Declaration of Carol A. Baidas reflects the following:

Carol A. Baidas has spent a total of 19.7 hours of time in researching, drafting, revising and editing the Anti-SLAPP motion and supporting papers, including the Opposition, the Reply, and drafting this request for attorneys' fees and costs as of August 3, 2026. (Baidas Decl., ¶ 11; Exhibit A; Exhibit B.) Jackie Aboud has spent a total of 85.3 hours of time in researching, drafting, revising and editing the Anti-SLAPP motion and supporting papers, including the Opposition, the Reply, and drafting this request for attorneys' fees and costs as of August 3, 2026. (Baidas Decl., ¶ 11; Exhibit A; Exhibit B; Exhibit C.) In sum, the total request for attorneys' fees regarding this motion amounts to \$20,935 based on the contracted hourly rate only (Baidas Decl., ¶ 11; Exhibit A; Exhibit B; Exhibit C.)

In order to further reflect the accurate time spent by moving counsel in raising and defending this Anti-SLAPP motion, moving counsel includes Exhibit B and C of verified

time records. Exhibit B is the time diary excerpts of Carol A. Baidas and Jackie Aboud, reflecting time records from the date of filing of the Cross-Complaint on January 23, 2026 to date. (Baidas Decl., ¶ 8.) Exhibit C reflects the time records of Jackie Aboud individually, for the month of July 2026, which are not reflected in the time diary in Exhibit B due to the timeline for the deadline of this Supplemental Declaration and the turnaround time for billing report timelines within the firm. (Baidas Decl., ¶ 8.) Cross-Defendant contends that “A verified fee bill is prima facie evidence the costs, expenses, and services listed were necessarily incurred [... and] a declaration attesting to the accuracy of the fee bill is presumed credible.” (*O’Kane*, 2021 Cal. Super. LEXIS 111740 at p. *6.) Moving counsel has filed the requested Supplemental Declaration concurrently to attest to the accuracy of the fee bill of this Anti-SLAPP motion.

In Opposition, Cross-Complainant contends that the hours spent (105 hours) are unreasonable and makes a request to substantially reduce based on attorney Carol A. Baidas’ and Attorney Jackie Aboud spending the excessive amount of 105 hours to research, draft, revise and edit 68 pages of pleadings, of which 10 pages are captions and 8 pages are proofs of service. Also, attorney Carol A. Baidas’ swearing under penalty as to the minute-by-minute details of Attorney Jackie Aboud's work without proper foundation.

Attorney Fees on Motion to Strike (Anti SLAPP)

The party prevailing on a special motion to strike “is entitled to mandatory attorney fees.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) A party who qualifies for a fee award should recover for all hours reasonably spent including those spent on fee related matters unless special circumstances would render an award unjust. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 633-634.) An award is reviewable on appeal only for abuse of discretion. (*Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 634.)

“As the moving party, the prevailing defendant seeking fees and costs bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates. To that end, the court may require [a] defendant to produce records sufficient to provide a proper basis for determining how much time was spent on particular claims. The court also may properly reduce compensation on account of any failure to maintain appropriate time records. The evidence should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.” (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1320 [internal citations and quotations omitted].) A verified fee bill is *prima facie* evidence that the costs, expenses, and services listed were necessarily incurred. (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) Additionally, “an award of attorney fees may be based on counsel's declarations, without production of detailed time records.” (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.) However, the trial court may make its own determination of the value of the services provided. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.) “An assertion [that] is unaccompanied by any citation to the record or any explanation of which fees were unreasonable or duplicative is insufficient to disturb the trial court's discretionary award of attorney fees.” (*Raining Data Corp.*, *supra*, 175 Cal.App.4th at 1376 [internal quotations omitted].)

A computation of time spent on a case, and the reasonable value of that time, is fundamental to a determination of an appropriate attorney fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.) The fee setting inquiry in California ordinarily begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. “In particular, the lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were reasonably spent on the litigation, and to determine the hourly rates that should be used in the lodestar calculus.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35 [internal citations and quotations omitted]; see also, *Christian Research Institute, supra*, 165 Cal.App.4th at 1322.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, supra*, 22 Cal.4th at 1095.) An experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.) Once the court determines the lodestar figure, it can determine whether that figure should be adjusted up or down. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 997.) In determining whether to award a multiplier to the base lodestar fee, the court considers: 1) the novelty and difficulty of the questions involved, 2) the skill displayed in presenting them, 3) the extent to which the nature of the litigation precluded other employment by the attorneys, and 4) the contingent nature of the fee award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; see also, *PLCM Group, supra*, 22 Cal.4th at 1096.) The purpose of such adjustment is to fix a fee at the fair market value for the particular action. (*Ibid.*)

An award of attorney fees may be based on counsel's declarations. (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375; *Mardirossian & Associates, Inc. v. Ersoff* (2007) 153 Cal.App.4th 257, 269-271.)

Here, Cross-Complainants contend that there are foundational issues with the Baidas Suppl. Decl., in that she declares what time another attorney, Jackie Aboud, spent on this motion. According to Cross-complainants, the declaration must be signed under penalty of perjury by the billing attorney. This is not true. Attorney Baidas explained in her April 1, 2026 declaration that she supervises attorney Aboud's work, and also that her firm's records indicate the time spent by her and attorney Aboud. (Aboud Decl. of April 1, 2026, ¶¶ 7, 8.)

In her supplemental declaration, Baidas declares that both Attorney Aboud and she utilize the same mandatory billing program at our firm called “iTimekeep”. She goes on to explain how the program works and that a copy of the iTimekeep billing records are attached as Exs. C. (Suppl. Baidas Decl., ¶7.) Attached to the Suppl. Baidas Decl. are the following exhibits:

Exhibit A is the declaration of Carol A. Baidas, Esq., filed concurrently with PCMA's Special Motion to Strike (Anti-SLAPP) on April 1, 2026.

Exhibit B is the time diary excerpts of Carol A. Baidas and Jackie Aboud, reflecting time records from the date of filing of the Cross-Complaint on January 23, 2026 to date.

Exhibit C reflects the time records of Jackie Aboud individually, for the month of July 2026, which are not reflected in the time diary in Exhibit B due to the timeline for the deadline

of this Supplemental Declaration and the turnaround time for billing report timelines within the firm.

The foundational objection is overruled.

It is true that there are multiple causes of action that had to be addressed in the underlying motion, and anti-SLAPP motions are complicated. However, the opposition seems right that spending 105 hours to research, draft, revise and edit 68 pages of pleadings, of which 10 pages are captions and 8 pages are proofs of service, is excessive given the amount of work required. The provision providing for award of fees on a meritorious anti-SLAPP motion was not intended to provide a windfall to the prevailing party, and “padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Christian Research Institute, supra*, 165 Cal.App.4th at 1321 [citation omitted].) Admittedly, the motion was a lot of work and the hourly contracted rate low. However, the court is going to reduce the billable hours of attorney About by 20%. She asks for 85.3 hours at an hourly rate of \$190 per hour, totaling \$16,207. A 20% reduction reduces \$16,207 by \$3,241.41 for a reduced total of \$12,965.60. Added to the \$4,728 charged by attorney Baidas (19.7 hours at \$240 per hour), the reduced total is \$17,693.60.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2605556	IN RE: ANDREA HERNANDEZ	PETITION FOR APPROVAL OF TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

Tentative Ruling: No tentative. Hearing will be conducted on Friday August 21, 2026 at 8:30 a.m. in Department PS2.